

25STCV38460 25STCV38460

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Case Number: 25STCV38460 Hearing Date: August 12, 2026 Dept: 224

Zelaya v. Yeghiyan

TENTATIVE RULING

Specially Appearing Defendant Matthew Fooladian's motion to quash service of summons is DENIED. Defendant Fooladian shall file a responsive pleading within the time provided by Code of Civil Procedure section 418.10, subdivision (b).

The Case Management Conference is continued to December 13, 2026 at 8:30 a.m.

Introduction

On December 31, 2025, Plaintiff Norma Zelaya filed this motor vehicle personal injury action against Defendant Armen Yeghiyan and Does 1 through 25, arising out of a traffic collision. Specially Appearing Defendant Matthew Fooladian was thereafter named by Doe amendment.

On April 17, 2026, Specially Appearing Defendant Fooladian filed the instant Motion to Quash Service of Summons and Complaint.

On July 29, 2026, Plaintiff filed an opposition.

On August 5, 2026, Defendant filed a reply.

On August 11, 2026, Plaintiff submitted a declaration of the retained agency for service of process.

Legal Standard

"A defendant . . . may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her" (Code Civ. Proc., § 418.10, subd. (a).) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) "[The filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such proofs." (Id. at

pp. 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has "the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service." (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.)

Reasonable Diligence

"Ordinarily, two or three attempts at personal service at a proper place should fully satisfy the requirement of reasonable diligence." (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 389.) Here, registered process server Javier Reyes Rios attempted personal service on three separate days at varying times. That satisfies the diligence requirement. Fooladian does not meaningfully contest diligence. Rather, his objection is to the location of service, addressed below.

Dwelling House or Usual Place of Abode

Fooladian's argument that the Glendale address had ceased to be his dwelling house or usual place of abode by February 14, 2026 is not established on this record, and is contradicted by his own official records.

Physical presence at the moment of service is not required, and the statute is construed liberally to uphold jurisdiction where the manner of service was reasonably calculated to give actual notice. (Bein v. Brechtel-Jochim Group, Inc. (1992) 6 Cal.App.4th 1387, 1392.) The evidence establishes that 127 N. Everett St. #9, Glendale, is the address Fooladian holds out as his own. His certified DMV Driver Record Information lists that address. (Chopurian Decl., ¶ 4, Exh. 2.) The temporary driver's license he provided to Plaintiff at the collision scene lists that address. (Id., ¶ 5, Exh. 3.) The Glendale Police Department collision report identifies him as Party No. 1 at that address. (Id., ¶ 6, Exh. 4.)

There is no indication that he has updated the address of record with the Department of Motor Vehicles in accordance with the obligation to report a change of residence address within ten days. (Veh. Code, § 14600.) His parents continue to occupy the residence.

Against that showing, Fooladian's motion offers no declaration of his own. He submits no military orders, no assignment or housing documentation, no lease, and no change-of-address record. Critically, Fooladian identifies no alternative fixed residence established in place of the Glendale address. His parents' declarations state only where he does not live. The assertion that the Glendale address "has not been" his abode "for a substantial period of time" is conclusory and unsupported by competent evidence.

Military service does not, by itself, divest a servicemember's family home of its status as a usual place of abode, particularly where the servicemember has not shown he established a separate permanent civilian residence and has left his own official records unchanged. On this record, Defendant has not rebutted the presumption of proper service.

Due Process and the Servicemembers Civil Relief Act

Mullane v. Central Hanover Bank & Trust Co. (1950) 339 U.S. 306 requires notice reasonably calculated under the circumstances to apprise interested parties of the pendency of the action. Section 415.20, subdivision (b) codifies a procedure meeting that standard, and service on an adult household member at the defendant's address of record, followed by mailing to the same address, falls squarely within it. Defense counsel's appearance and meet-and-confer efforts within weeks of the mailing confirm that notice was in fact received. The due process argument adds nothing independent of the statutory argument and is rejected.

Conclusion

Specially Appearing Defendant Matthew Fooladian's motion to quash service of summons is DENIED. Defendant Fooladian shall file a responsive pleading within the time provided by Code of Civil Procedure section 418.10, subdivision (b).

The Case Management Conference is continued to December 13, 2026 at 8:30 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.